

SENATE BILL 2229

By Johnson

AN ACT to amend Tennessee Code Annotated, Title 12,
Chapter 4, Part 4, relative to the prevailing wage
rate.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 12-4-402, is amended by deleting
subdivision (5) and substituting:

(5) "State contract" means any contractual written agreement entered into by
any person, firm, or corporation with this state for the performance of work on a state
highway construction project; and

SECTION 2. Tennessee Code Annotated, Section 12-4-403, is amended by deleting
subsection (a) and substituting:

(a) It is hereby declared to be the policy of this state that the prevailing wage
rate be determined by the defined standards and that such rate be paid to workers on all
state highway construction projects and all non-state contract construction projects on
public highways that are funded in whole or in part with federal or state highway funds.

SECTION 3. Tennessee Code Annotated, Section 12-4-404(a), is amended by adding
"or the commissioner's designee" after "development".

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it,
and applies to contracts entered into, amended, or renewed on or after such date.